

Performance Work Statement (PWS) – Controlled Substance Waste Disposal Services

1. General Information

The purpose of this contract is to ensure full compliance with VHA Directive 1108.01 and Title 21 Code of Federal Regulations (CFR) for the secure handling, deactivation, and disposal of controlled substances that are expired, damaged, returned, unusable, or otherwise unwanted.

The Contractor shall be registered with the DEA as a reverse distributor, where applicable, and shall comply with all federal, state, and local laws governing controlled substances, including but not limited to 21 CFR Parts 1300–1321.

All services must align with Drug Enforcement Administration (DEA) requirements, VA policies, and applicable healthcare and environmental industry standards.

2. Scope of Work

The Contractor shall provide all labor, materials, equipment, supervision, and technical expertise necessary to support a Controlled Substance Waste Disposal (CsRx) Program.

Services include:

- Provision, installation, and maintenance of secure disposal containers
- Continuous supply and replenishment of containers and contingency stock
- Training and program implementation support
- Compliance assurance and documentation
- Ongoing customer and technical support

3. Performance Requirements

3.1 Container System

Contractor shall provide and install 3-gallon containers (or adjusted sizes based on operational assessment).

Containers must:

Immediately deactivate controlled substances upon deposit

Prevent diversion and ingestion (chemical neutralization/solidification)

Be tamper-resistant and securely mounted with lockable brackets

Unlimited container replacement shall be included at no additional cost per location.

3.2 Installation

Contractor shall install containers at designated VA locations under facility supervision.

Installation must:

- Minimize disruption to patients, staff, and operations
- Comply with safety and facility standards
- Be completed within agreed timelines

- Written confirmation of completed installation shall be provided to the COR.

4. Delivery and Supply Chain Management

Contractor shall ensure uninterrupted supply of containers and materials.

Deliveries shall meet agreed service levels (e.g., within X business days of request).

Contingency inventory shall be maintained at VA facilities to prevent service interruptions.

5. Training Requirements

Contractor shall provide:

Initial on-site training at Palo Alto VA

Web-based training for satellite locations

Training shall include:

- Proper use of containers
- Safety procedures and spill response
- DEA-compliant handling and disposal practices
- Diversion prevention awareness

Contractor shall provide:

- Training materials and documentation
- Attendance records

The COR will verify completion of initial and recurring training in accordance with VA policy.

6. Self-Service Model

This is a self-service program:

- VA staff (EMS or designated personnel) will replace containers at the point of use.
- Contractor shall provide clear instructions, labeling, and ongoing support.
- Contractor shall ensure the process remains compliant with DEA and VA standards.

7. Quality Assurance and Compliance

The Contractor shall maintain a Quality Assurance/Quality Control (QA/QC) program that includes:

- Routine inspections and performance checks
- Documentation of all container distribution and disposal activities
- Corrective and preventive actions (CAPA)
- Compliance with DEA audit and recordkeeping requirements

The Contractor must support audit readiness, including:

- Chain-of-custody documentation
- Certificates of destruction (if applicable)

- Record retention per regulatory requirements

8. Diversion Prevention and Security

All systems must minimize risk of diversion of controlled substances.

Containers must:

Prevent retrieval of deposited substances

Neutralize pharmaceutical activity

Contractor shall implement industry best practices for:

Controlled substance security

Loss/theft reporting procedures

Incident escalation

9. Performance Metrics (KPIs)

The Contractor shall meet or exceed the following performance standards:

On-time delivery rate: $\geq 95\%$

System uptime/availability: $\geq 99\%$

Training completion rate: 100% of required staff

Incident response time: within X hours of notification

Compliance rate: 100% adherence to DEA and VA requirements

Semi-Annual and Annual Performance Evaluation:

- Performance metrics
- Cost analysis
- Program improvements
- Issue resolution tracking

10. Risk Management

The Contractor shall:

Identify potential risks (supply disruption, compliance gaps, diversion risks)

Maintain mitigation and contingency plans

Ensure continuity of operations under all conditions

11. Bin Management

VA Palo Alto retains the right to:

Add or remove containers as needed

Adjust placement for operational efficiency

Contractor shall accommodate changes without service disruption.

12. Disposal Responsibilities

VA staff will perform disposal actions following Contractor-provided training.

Contractor shall ensure disposal methods:

Meet DEA destruction standards

Render substances non-retrievable

Meet environmental and regulatory requirements

13. Locations

Services shall be provided at the following VA facilities:

1. Palo Alto VA Medical Center

3801 Miranda Avenue

Palo Alto, CA 94304-1207

2. Menlo Park Division

795 Willow Road

Menlo Park, CA 94025-2539

3. Livermore

4951 Arroyo Road

Livermore, CA 94550-9650

4. Fremont

39199 Liberty Street, Building B

Fremont, CA 94538-1501

5. San Jose VA Clinic

5855 Silver Creek Valley Place

San Jose, CA 95138-1059

VAMC/CBOC	Container Count
PAD	54
MPD	15
LVD	2
Freemont	1
San Jose	1
Total	73

Division / CBOC Location	Building #	Nursing Unit	Room # of CS Waste container
Freemont - ACC	B	PACT	136
LVD ACC	62	PACT / SPECIALTY	302
LVD CLC	90	CLC1	B-104
MPD	350	TRS	119-med rm
MPD	351	TRS	119-med rm
MPD	352	TRS	119-med rm
MPD	347	Domiciliary	E205
MPD ACC HT TRV	335	HT TRV	n/a
MPD CLC	360	360D	D-106
MPD CLC	360	360E	E-108
MPD CLC	360	360F	F-106
MPD CLC	360	360G	G-106
MPD CLC	331	331B	B102
MPD CLC	331	331D	D102
MPD CLC	360	360A	A105
MPD CLC	360	360B	B105
MPD CLC	360	360D	D108
MPD CLC	360	360E	E108
PAD	100	3C	C3-120A
PAD	100	3C	Across Room 3C-119 Hallway
PAD	100	3C	Across Room 3C-140 Hallway
PAD	100	2A	A2-120A
PAD	100	2A	Across room A2-119
PAD	100	2A	Across room A2-140
PAD	100	MSICU	Next to pharmacy Omnicell #1 Across from F3-329 (Rm 3)
PAD	100	MSICU	Next to pharmacy Omnicell #2 Across from F3-307 (Rm 12)
PAD	100	MSICU	Room F3-322
PAD	100	4A	Next to pharmacy Omnicell #1 near room A4-140
PAD	100	4A	Next to pharmacy Omnicell #2 near room A4-TC1
PAD	100	4A	A4-120a
PAD	100	4A	A4-120a
PAD	100	ED	Adjacent to Med Room A1-224
PAD	100	ED	Adjacent to Med Room A1-325G
PAD	100	IICU	Next to pharmacy Omnicell #1 F2-316a
PAD	100	IICU	In front of Omnicell #2 next to F2-302
PAD	100	IICU	F2-326
PAD	100	GI Endoscopy	C1-221
PAD	100	OSS	A3-120A
PAD	100	PACU	F3-112
PAD	100	IR	F1-175
PAD	100	Dialysis	B2-102 C
PAD	100	OR	OR1
PAD	100	OR	OR2
PAD	100	OR	OR3
PAD	100	OR	OR4
PAD	100	OR	OR5
PAD	100	OR	OR6
PAD	100	OR	OR7
PAD	100	OR	OR8
PAD	100	Cath Lab	Cath Lab Room #1 next to NL22A-19 (plug in)
PAD	100	Cath Lab	Cath lab Room #2 next to E2-410-9 (plug in)
PAD	100	Cath Lab	E2-427
PAD	500	WBRC	A2-300A
PAD	500	PRC/CRC/SSP	A1-300A
PAD	500	PRC/CRC/SSP	A1-500A
PAD	500	PTRP	A3-400A
PAD	7F	SCI/D	F-109A
PAD	7H	SCI/D	H-120
PAD	100	CENTRAL PHARMACY	E1-120 ANTE ROOM
PAD	N/A	IV TRAILER	T-100A
PAD	710	Animal Research Lab	V-211
PAD - Mental Health	520	A /FOR	A-15B
PAD - Mental Health	520	B/ Birch	B-150
PAD - Mental Health	520	C/Cyprus	C-150
PAD - Mental Health	520	D/Douglas	D-150
PAD ACC / AIC	100	PAD Specialty	C1-300
PAD CLC	100	2C	C2-120a
PAD CLC	100	2C	C2-120a
PAD CLC	100	4C	C4-120a
PAD CLC	100	4C	C4-120a
PAD GMC ACC	5	PAD GMC	B 215
PAD GMC ACC	5	PAD GMC	C 260
San Jose CBOC ACC	N/A	PACT	Neighborhood 3, 2125 (Arch# 2049)

14. Documentation and Reporting

The Contractor shall provide:

- Installation confirmation reports
- Training completion records
- Inventory and usage tracking
- Compliance documentation
- Incident and corrective action reports

Reports shall be submitted monthly or as requested by the COR.

15. Continuous Improvement

The Contractor shall proactively recommend:

Process improvements

Cost efficiencies

Enhanced compliance measures

Technology upgrades aligned with industry best practices